Bright & Duggan - Civium

MN-95043

Phase 1 Determination

Acquisition may be put into effect

29 October 2026

1. Determination and statement of reasons

Notified acquisition	Bright & Duggan Group Pty Ltd (**Bright & Duggan**) through a wholly owned subsidiary, proposes to acquire 100% of the shares in the 11 entities comprising Civium Property Group's strata and building management business (**Civium**) (the **Acquisition**)**.**
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Bright & Duggan, supplies strata and building management services to owners' corporations, bodies corporate and community title schemes in the ACT, NSW, QLD and VIC. Bright & Duggan provide services to residential, commercial, mixed-use and community title developments. Bright & Duggan is a wholly owned subsidiary of Johns Lyng Group Limited (**Johns Lyng Group**), which is ultimately majority-owned and controlled by funds managed or advised by the private equity firm Pacific Equity Partners. Johns Lyng Group's operations in Australia, in addition to strata and building management services, include insurance building and restoration services, disaster recovery and management services, commercial building services and home and compliance services. The target, Civium, supplies strata and building management services to residential and commercial customers. It operates in the ACT, NSW, QLD and VIC.
Overlap and relationship between the Parties	Bright & Duggan and Civium overlap in the supply of: • strata management services in the ACT, New South Wales, Queensland and Victoria • building and facilities management services in the ACT. The parties also have a non-horizontal relationship, as Bright & Duggan's parent company, Johns Lyng Group, supplies related insurance building and restoration services, outlined above.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the C*ompetition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information provided by third parties and publicly available information. The ACCC has determined that the Acquisition may be put into

	effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • the market share increment resulting from the Acquisition is estimated to be low in each relevant state or territory due to Civium's limited presence in New South Wales, Victoria and Queensland, and Bright & Duggan's limited presence in the ACT. • Bright & Duggan would likely continue to face competition from alternative independent suppliers of strata management services, building management services or suppliers of both strata and building management services. • Bright & Duggan would be unlikely to have the ability and incentive to engage in anti-competitive bundling or tying post-acquisition given the number of alternative independent suppliers.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act